

Postal address:
Box 8114
104 20 Stockholm
Website:
www.imy.se
Email:
imy@imy.se
Phone:
08-657 61 00
1(3)

Nordea Bank Abp, branch in Sweden
Sent via email

Decision following supervision under the
Data Protection Regulation – Nordea
Bank Abp, branch in Sweden

Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection finds that Nordea Bank Abp, branch in Sweden has satisfied the complainant's request for access. Against this background, the Swedish Authority for Privacy Protection does not find grounds to take any further action in the matter.

The case is closed.

Account of the supervisory case

The Swedish Authority for Privacy Protection (IMY) has initiated supervision regarding Nordea Bank Abp,

branch in Sweden (hereinafter Nordea or the bank) in order to investigate a complaint about the right to

access under Article 15 of the Data Protection Regulation.

The complainant has primarily stated the following. The complainant has requested access from Nordea

regarding a recording of a conversation between the complainant and one of Nordea's employees. The complainant has not received a copy of the conversation where the voice of Nordea's employee is discernible, which the complainant has requested.

Nordea has primarily stated the following. The complainant has requested to receive the recording of the relevant conversation. Nordea has accommodated the request by allowing the complainant

to listen to the recording on-site at Nordea. The complainant has further been offered a transcription of the conversation as well as a copy of the audio file with the recording where the voice of Nordea's employee has been edited out, as it has been assessed to adversely affect the employee's rights to disclose their voice.

Justification of the decision

Applicable provisions, etc.

The right to access is regulated in Article 15 of the Data Protection Regulation. The right to access includes, among other things, that the data controller is obliged to provide confirmation to a data subject, i.e., an

identified or identifiable natural person, who requests it, regarding whether personal data concerning the

data subject is being processed or not. If such data is being processed, the data controller must, among other

things, provide the data subject with a copy of the personal data being processed. This right to a copy shall, however,

not adversely affect the rights and freedoms of others.

The purpose of the right to access is to enable the data subject to be aware that processing is taking place and to be able to verify that it is lawful. The right to receive a copy of personal data includes a right for the data subject to receive an exact and comprehensible representation of all personal data that the data controller processes about him or her.

IMY's assessment

The complainant's voice, which appears in a telephone conversation, constitutes personal data about the complainant, which the complainant thus has the right to receive a copy of in an audio file. However, the voice of

Nordea's employee does not constitute personal data about the complainant. Regarding the part of the telephone conversation that consists of statements from Nordea's employee, it is therefore sufficient that the

information, to the extent that it constitutes personal data about the complainant, is provided through a transcription of the conversation.

In the case, it has been revealed that Nordea has provided access by offering an audio file containing the

complainant's voice as well as a transcription of the conversation. IMY thus finds that Nordea has satisfied the

complainant's request for access. Against this background, the Swedish Authority for Privacy Protection does

not find grounds to take any further action in the matter.

The case shall therefore be closed.

This decision has been made by the acting unit manager Nidia Nordenström after presentation by the lawyer

Fredrik Löfgren.

Nidia Nordenström, 2023-06-12 (This is an electronic signature)

Copy to

The complainant

2 Article 15.1 of the Data Protection Regulation.

3 Article 15.3 of the Data Protection Regulation.

4 Article 15.4 of the Data Protection Regulation.

5 Judgment of the Court of Justice of the European Union of May 4, 2023 in case C-487/21.

Swedish Authority for Privacy Protection

Case number: IMY-2023-4559

3(3)

Date: 2023-06-12

How to appeal

If you wish to appeal the decision, you should write to the Swedish Authority for Privacy Protection.

Indicate in

the letter which decision you are appealing and the change you are requesting. The appeal must be received by

the Swedish Authority for Privacy Protection no later than three weeks from the day you received the decision. If the appeal has been submitted in a timely manner, the Swedish Authority for Privacy Protection will

forward it to the Administrative Court in Stockholm for examination.

You may email the appeal to the Swedish Authority for Privacy Protection if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's

contact

details are provided on the first page of the decision.